Hollowell Patent Group PLLC

www.hollowellpatent.com

March 30, 2024

Cynthia Hunter
Chief Operating Officer
Jackson Inc

Re: Clearance of a proposed trademark

Dear Ms. Hunter:

Thank you for asking us to advise Jackson Inc on whether the name it proposes to adopt can be used and registered as a trademark in the United States for the goods and services it intends to offer under that name. This letter records the work we have agreed to do, the people who will do it, the fee and the date on which the work will begin, and the terms on which we will act for the company, and it becomes our agreement when you countersign it.

Scope

We will advise the company on whether the proposed mark is available for use and for federal registration for the goods and services you have described to us, and, where it is not clearly available, on the nature and extent of the risk that adopting it would carry. If, before we order the full search described below, you ask us to consider an alternative name for the same goods and services, we will include it in this engagement without an additional fee.

How the Work Will Proceed

The work will move through four stages, and each depends on the one before it:

- Intake. We will confirm with you in writing the mark, the goods and services, the channels through which they will be sold, and any use the company has already made of the name, because every search that follows is run against that description.
- Screening search. We will search federal registrations and pending applications for identical and closely similar marks, so that a name with an obvious obstacle can be set aside before the cost of a full search is incurred.
- Full search. If the screening search discloses no such obstacle, we will order a full search report covering federal and state registrations, pending applications, business and domain names, and unregistered use in commerce, and we will review each relevant entry against the company's mark.

- Memorandum. We will deliver a written clearance memorandum, marked privileged, that assesses the risk of using the mark and the prospects of registering it, identifies the marks on which that assessment rests, and recommends whether the company should proceed, modify the mark, or choose another.

A clearance search speaks as of the date on which it is run. Applications filed and use begun after that date fall outside the memorandum unless you ask us to bring the search up to date, which we would quote for separately.

What This Engagement Does Not Include

The engagement does not include preparing or filing a trademark application, clearance in any country other than the United States, watching the register after the memorandum issues, or representing the company in any opposition, cancellation, demand, or dispute concerning the mark. Where the memorandum suggests that one of those steps deserves your attention it will say so, and any of them would be the subject of a separate letter.

Staffing

I will have overall responsibility for the engagement and will sign the clearance memorandum. Kelly Snyder, an Associate with the firm, will carry out the legal analysis of the search results and will be your usual point of contact, and Ashley Williams, a Patent Agent with the firm, will coordinate the searches, keep a dated record of what was searched and when, and maintain the docket for the matter.

Whether the mark can be used or registered is a legal question, and the conclusions on it will be reached and stated by Ms. Snyder and by me. You should raise with me directly any concern you have about staffing, cost, or the pace of the work.

Fee and Start of Work

Our fee for the work described above is a fixed fee of $48,000. Work will begin on April 9, 2024, provided we have your countersigned copy of this letter by then, and we expect the engagement to run about four months from that date, although the time needed to review the full search depends on how many similar marks it returns and cannot be fixed in advance.

The fixed fee covers the four stages described above and nothing else. The charges of the commercial search provider and any official fees are not part of it; we will bill them at cost, and we will tell you the charge for the full search before we place the order.

Billing and Payment

We will invoice half of the fixed fee when the work begins and the balance when we deliver the memorandum, and we will invoice costs in the month in which they are incurred; each invoice is

payable within thirty days of its date. If an invoice remains unpaid sixty days after its date, we may suspend work on written notice to you, and if it remains unpaid thirty days after that notice we may withdraw from the engagement, subject to our obligations under the rules of professional conduct.

Conflicts of Interest

Before sending this letter we checked Jackson Inc against our records and found no representation adverse to it. A full search can, however, return a mark owned by a current client of this firm; if it does, we will tell you promptly, we will not advise you on that mark ourselves, and that part of the analysis may need to go to independent counsel.

Term and Termination

This engagement runs from the start date stated above until we have delivered the clearance memorandum and answered your questions on it, and it then ends without further notice unless we agree in writing to continue. Either of us may end it earlier by written notice, in which case the company will owe the part of the fixed fee that corresponds to the work completed by the date of the notice, together with any costs already incurred.

Confidentiality

We will hold in confidence everything the company gives us in the course of the engagement and will use it only for this work, and until the company adopts the mark we will treat the fact that it is considering the name as confidential, disclosing it only to the search provider and only to the extent the search requires. Our communications with you and the memorandum are intended to be protected by the attorney-client privilege, and to keep that protection we ask that you limit their circulation to the people within the company who need them and speak to us before sharing them with designers, distributors, investors, or anyone else outside it.

Limitation of Liability

A clearance memorandum is a professional judgment based on the search results available when the search is run and on the information the company gives us; it is not a guarantee that no one will object to the mark, that the United States Patent and Trademark Office will register it, or that a court would weigh the risk as we do. No search can find every unregistered use of a name, and we are not responsible for consequences that follow from information that was incomplete or inaccurate when it was given to us. Nothing in this letter limits any liability that the rules of professional conduct do not permit a lawyer to limit in advance.

Governing Law

This letter is governed by the law of the state in which the firm maintains its principal office, without regard to that state's rules on conflicts of law. It is the entire agreement between us on this engagement and may be changed only in a writing signed by both of us.

If these terms are acceptable, please sign below on behalf of Jackson Inc and return a copy to me. When I have it, Kelly Snyder will send you a written request for the information we need at intake, and the work will begin from your answers.

Sincerely,

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Mary Bradley
Managing Partner
Date: March 30, 2024

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Cynthia Hunter
Chief Operating Officer, Jackson Inc
Date: March 30, 2024